

Calendar Line 5

Case Name: *Gerardo Vasquez v. General Motors, LLC*

Case No.: 21CV377708

Plaintiff seeks an award of attorneys' fees and costs of \$46,155.70. This request consists of (1) \$29,884.00 in attorney fees; (2) a 1.35 multiplier enhancement on the attorney fees (or \$10,459.40); (3) \$1,812.30 in costs and expenses; and (4) an additional \$4,000.00 to review an opposition, draft a reply, and attend a hearing on the motion. The motion is GRANTED IN PART.

The Court has received no opposition. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.). Nevertheless, the Court denies a multiplier on the basis that the risks and complexities of this case do not justify it. Also, the Court will not award fees for responding to an opposition, drafting a reply, or attending a hearing on the motion. These fees either have not been incurred or are anticipatory.

Defendant is ordered to pay to Plaintiff \$31,696.30 in attorneys' fees and costs within sixty (60) days of service of the final order.

Plaintiff to prepare the final order within 15 days of the date of the hearing.

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